

1. Line 8 through 13:

- 8 →defines terms;
- 9 →repeals a study requirement for the Higher Education Appropriations Subcommittee that
- 10 this legislation fulfills;
- 10a → ~~it~~ → **requires the Higher Education Appropriations Subcommittee to ensure the**
- 10b **inclusion**
- 10b **of certain factors in non-statutory funding formulas for technical colleges;** ←~~it~~
- 11 →establishes a process and formula for determining certain enrollment-based funding for
- 12 institutions of higher education, including degree-granting universities and technical
- 13 colleges;

2. Line 71 through 81:

- 71 report is due to the Higher Education Appropriations Subcommittee: the board's report
- 72 regarding each institution's strategic reinvestment plan described in Section 53H-8-210.
- 73 (3) In accordance with applicable provisions, the Higher Education Appropriations
- 74 Subcommittee shall ~~it~~ → **:**
- 74a **(a)** ←~~it~~ complete the following:
- 75 ~~it~~ → **(a)(i)** ←~~it~~ an appropriation recommendation described in Section
- 75a 53H-1-504 regarding
- 76 compliance with Subsections 53H-1-504(5) and (14); and
- 77 ~~it~~ → **(b)(ii)** ←~~it~~ as required by Section 53H-8-304, the review of performance
- 77a funding described in
- 78 Section 53H-8-304 ~~it~~ → **;** **and**
- 78a **(b) ensure that all non-statutory performance and growth funding formulas that**
- 78b **contribute to appropriations for technical colleges;**
- 78c **(i) include equivalent funding value for secondary and adult students; and**
- 78d **(ii) reflect the full responsibility of the technical college's statutorily-required**
- 78e **services.** ←~~it~~
- 79 [(4) In consultation with the board, the Higher Education Appropriations Subcommittee
- 80 shall study a re-design of:]
- 81 [(a) the performance funding model described in Chapter 8, Part 3, Performance

3. Line 89 through 91u:

89 ~~[(i) include equivalent funding value for secondary and adult students; and]~~
90 ~~[(ii) reflect the full responsibility of the technical college's statutorily-required~~
91 ~~services.]~~
91a ~~§→~~ **(4) The board shall:**
91b **(a) complete a technical college capacity funding framework study for institutions**
91c **described in Subsection 53H-3-602(1)(b)(iv) that contemplates:**
91d **(i) a process for identifying specific technical college programs eligible for**
91e **state-funded capacity expansion;**
91f **(ii) identifying, validating, and quantifying, by institution and program, unmet:**
91g **(A) student demand, including secondary and postsecondary students; and**
91h **(B) employer demand for graduates;**
91i **(iii) methodology for establishing the amount and timing of state-funded capacity**
91j **appropriations, including whether the appropriations are retrospective or**
91k **prospective;**
91l **(iv) the availability of alternative funding sources to support capacity expansions;**
91m **(v) mechanisms for the return of state funds if an institution does not achieve**
91n **capacity gains; and**
91o **(vi) how the capacity framework comports with:**
91p **(A) enrollment funding, as described in Section 53H-8-211; and**
91q **(B) performance funding, as described in Chapter 8, Part 3, Performance**
91r **Funding; and**
91s **(b) report the results of the study described in this Subsection (4), including any**
91t **corresponding recommendations, to the Higher Education Appropriations**
91u **Subcommittee before October 1, 2026.** ←§

4. Line 221 through 228:

221 enrollment funding based on the positive or negative change in enrollment at the
222 institution by:
223 (i) calculating the average direct instructional cost per budget-related full-time
224 equivalent at each level of instruction §→ **on a system-wide basis** ←§ ;
225 (ii) calculating the five-year average full-time equivalent budget-related resident
226 enrollment at each level of instruction §→ **at each institution** ←§ for the five-year
226a period ending with the
227 previous fiscal year and the five-year period ending with the year before the
228 previous fiscal year;